Thus the lower court records show that Judge S.N. Dhingra passed the following order on 12 July 2002:

> I consider that irrespective of accused saying that he does not want amicus curiae, the court has the duty to seek the assistance of an amicus curiae in such cases where the accused is not cooperative. Mr Neeraj Bansal has requested for withdrawal from this case, but is requested to assist the court during trial.
> Accused Mohd Afzal has requested to cross examine the witnesses himself. He is given the liberty to cross-examine the witness.

The result of this decision was that of a total of eighty prosecution witnesses only twenty-two witnesses were cross examined by Neeraj Bansal—all of them insufficiently—and Afzal put a few questions to three witnesses. (In his petition before the President of India Afzal has produced a long chart—reproduced here as Appendix 1—with exact details of the cross examination.)

Afzal has written to the President:

> The Supreme Court held that no prejudice was caused to me even though I did not have a lawyer to represent me and my lawyer at one point told the court he did not wish to represent me. The Supreme Court states that it was not demonstrated by my counsel how the case was mishandled. Supreme Court was of the view that cross examination of the witnesses on behalf of me was not faulty. But the very basis of my conviction is founded on the facts that the material witnesses were not challenged in cross examination or no suggestion was put to them to disprove their allegations against me. I would like to show that the Supreme Court's own judgement shows how the fact that I was deprived of a counsel affected me.

The second argument for not hanging Afzal is that the investigation was full of illegalities and the courts noted with concern that evidence was fabricated; the police officers of the Special Cell told lies on oath in court and the supreme court has observed that the police had got false confessions from Afzal by torturing him.[12] Criminal law prescribes the death penalty for anyone who fabricates evidence with a view to getting someone death penalty. But the courts did not even pass a stricture against DCP Ashok Chand for denying any knowledge of the media conference held on 20 December at the police station of the Special Cell in which Mohammad Afzal was made to incriminate himself before the national media.

Third, Mohammad Afzal was not responsible for anyone's death or injury. He did not mastermind the attack. In fact, he was acquitted of charges of belonging to any terrorist organization even by the POTA court because none of the eighty prosecution witnesses even alleged that he belonged to any such organization. Even according to the police charge sheet, the real masterminds were three Pakistanis—Masood Azhar, Tariq Ahmed and Ghazi Baba. None